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|    |                                                                      | <p>discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 12.) Under such circumstances, the trial court has “broad authority to levy the ultimate sanction when prior efforts yielded no results.” (<i>Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.</i> (2008) 163 Cal.App.4th 1093, 1105.)</p> <p>Here, the Court declines to issue terminating, issue or evidentiary sanctions. The Court will, however, issue monetary sanctions for Plaintiffs’ failure to timely cooperate in the discovery process and abide by the Court’s previous court orders regarding the same as well as the cost of bringing the motion and fees incurred for Plaintiffs’ nonappearances at the scheduled depositions.</p> <p>The request for monetary sanctions is <b>GRANTED</b> against Plaintiffs and Plaintiffs’ counsel, jointly and severally, in the amount of \$3,060.00.</p> <p><b>Defendants to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 3. | <p><b>30-2023-01361390</b></p> <p><b>Norris vs. Chavez-Nambo</b></p> | <p><b>1. Motion for Terminating Sanctions</b></p> <p>Defendant Diana Angelica Chavez-Nambo (“Defendant”) moves for an order imposing terminating sanctions against plaintiff Diona Shunte Norris (“Plaintiff”) and dismissing this action with prejudice.</p> <p>The Court may impose a monetary, issue, evidence, or terminating sanction against any party engaging in misuse of the discovery process. (Code Civ. Proc., § 2023.030.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.)</p> <p>On October 30, 2025, the Court granted Defendant’s motion to compel Plaintiff’s responses to Special Interrogatories, ordering Plaintiff to provide responses within 30 days and pay \$500.00 in sanctions within 30 days as well. On January 15, 2026, the Court granted Defendant’s motion to compel responses to Request for Production of Documents and ordered Plaintiff to pay an additional \$500.00 in sanctions. Defendant’s motion to compel responses to Form Interrogatories was granted on January 22, 2026 with an additional \$350.00 in sanctions imposed. To date, Plaintiff has not served responses or paid the sanctions.</p> <p>The hearing on this Motion was continued from August 20, 2026 to September 24, 2026 and Plaintiff was ordered to appear on September 24 and expressly advised that the failure to appear may result in dismissal without further notice.</p> <p>Plaintiff has disobeyed the Court’s orders without substantial justification. Under these circumstances, the Court finds the ultimate sanction of termination to be warranted. Thus, Defendant’s unopposed Motion for Terminating Sanctions is <b>GRANTED</b>.</p> <p><b>Moving party to give notice.</b></p> |